

HOUSE No. 2240

The Commonwealth of Massachusetts

PRESENTED BY:

Andres X. Vargas

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to discharges from sober homes.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Andres X. Vargas</i>	<i>3rd Essex</i>	<i>1/17/2025</i>
<i>Nick Collins</i>	<i>First Suffolk</i>	<i>10/10/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>10/20/2025</i>

HOUSE No. 2240

By Representative Vargas of Haverhill, a petition (accompanied by bill, House, No. 2240) of Andres X. Vargas relative to discharges from sober homes. Mental Health, Substance Use and Recovery.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to discharges from sober homes.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Subsection (g) of section 18A of chapter 17 of the General Laws, as
2 appearing in the 2022 Official Edition, is hereby amended by adding the following sentence:-
3 The department's regulations shall include minimum standards for discharge and transfer
4 policies approved pursuant to subsection (i), including guidance about situations warranting the
5 immediate discharge or transfer of a resident.

6 SECTION 2. Said section 18A of said chapter 17, as so appearing, is hereby further
7 amended by adding the following subsection:-

8 (i) An operator of certified-alcohol and drug free housing shall have a written discharge
9 and transfer policy approved by the accredited program and the bureau. Notwithstanding chapter
10 186 or any other general or special law to the contrary, approved discharge and transfer policies
11 may allow for the immediate discharge or transfer a resident only when: (i) the transfer is
12 necessary for the resident's welfare; (ii) the resident's needs cannot be met at the certified sober

13 home; or (iii) the health and safety of other residents, employees or volunteers are at risk or
14 would be at risk if the resident continues to live at the residence. A person who refuses to leave a
15 residence after a discharge or transfer that is consistent with an approved policy may be ordered
16 to leave the premises by the operator or by a law enforcement officer.